

Amendment No. 2 to HB1882

Slater
Signature of Sponsor

AMEND Senate Bill No. 1649*

House Bill No. 1882

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 49-8-201(f)(3), is amended by designating the existing language as subdivision (A) and adding the following as a new subdivision (B):

(B) Notwithstanding subdivision (f)(3)(A), the members of a state university board appointed by the governor on or after January 1, 2027, must be confirmed by joint resolution of the senate and house of representatives prior to beginning a term of office.

SECTION 2. Tennessee Code Annotated, Section 49-8-201(f)(2)(A), is amended by adding the following as a new subdivision:

(iv) Beginning on the effective date of this act, the terms of members appointed by the governor pursuant to subdivision (f)(1)(B) begin on April 1 and expire six (6) years thereafter. In order to align the terms of existing members appointed by the governor with members appointed by the governor on or after January 1, 2027, the terms of members appointed by the governor pursuant to subdivision (f)(1)(B) who are serving a term on a state university board on the effective date of this act are extended to March 31 immediately following the date on which the member's term is set to expire.

SECTION 3. Tennessee Code Annotated, Section 49-8-201(f)(9)(A), is amended by adding the following as new subdivisions:

(iii) Members appointed to the state university board for Tennessee State University by the governor on or after January 1, 2027, must be confirmed as provided in subdivision (f)(3)(B) prior to beginning a term of office; and

(iv) Beginning on the effective date of this act, the terms of members appointed by the governor pursuant to subdivision (f)(1)(B) begin on April 1 and expire six (6) years thereafter. In order to align the terms of existing members appointed by the governor with members appointed by the governor on or after January 1, 2027, the terms of members appointed by the governor pursuant to subdivision (f)(1)(B) who are serving a term on the state university board for Tennessee State University on the effective date of this act are extended to March 31 immediately following the date on which the member's term is set to expire;

SECTION 4. Tennessee Code Annotated, Section 49-8-201(f)(5), is amended by adding the following language at the end of the subdivision:

Notwithstanding this subdivision (f)(5), a vacancy occurring by death or resignation of a member of a state university board appointed by the governor pursuant to subdivision (f)(1)(B) on or after January 1, 2027, must remain vacant until the member appointed by the governor to fill the vacancy is confirmed by joint resolution of the senate and house of representatives.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.